

Dilip Kumar v. State of U.P.

Allahabad High Court · Division Bench · 19 July 2021 · WRIT - C No. 14602 of 2021 · **Writ disposed; petitioner remitted to Clause 6.5 bill-correction with time-bound pre-deposit and a one-month stay of coercive recovery.**

HEADNOTE

A writ seeking to quash an electricity recovery certificate and restrain recovery, on the plea that the bill is excessive and incorrectly calculated, will not be decided on merits where the consumer has not applied under Clause 6.5 of the U.P. Electricity Supply Code, 2005. That clause is an adequate alternative statutory remedy for correction of a disputed bill. The Court directed a time-bound application to the Executive Engineer, communication and deposit of the Clause 6.5(b)(ii) pre-deposit, a reasoned verification order, and a short stay of coercive measures subject to compliance.

FACTUAL SUMMARY

Dilip Kumar challenged a 17 March 2020 demand of Rs.12,93,577 and a 21 November 2020 recovery certificate for Rs.6,73,107 plus recovery charges as arrears of land revenue, issued by the Executive Engineer, Electricity Distribution Division, Meja, Prayagraj, to the District Magistrate. He said the electricity charges were incorrectly calculated and the bill was excessive. The power corporation replied that Clause 6.5 of the Supply Code was the proper remedy and that no correction application had been filed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — Clause 6.5 as alternate remedy to writ

HOLDING

Clause 6.5 of the Supply Code is an adequate alternative statutory remedy for correction of a disputed electricity bill. A writ to quash a recovery certificate and restrain recovery, on the plea that charges were incorrectly calculated, need not be kept pending or answered on merits where no Clause 6.5 application has been made. The consumer was directed to file a proper application before the Executive Engineer within two weeks; the Engineer to communicate the Clause 6.5(b)(ii) pre-deposit within one week; the consumer to deposit within two weeks; and the Engineer then to verify the claim and pass a reasoned order within one week, with coercive measures stayed for one month subject to compliance.

¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The recovery-certificate writ was not decided on the correctness of the bill; the consumer was remitted to Clause 6.5. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court treated Clause 6.5 as the adequate alternative statutory remedy for correction of the disputed bill that had led to the recovery certificate. ¶ 1

bill-correction-clause-6.5 The plea of incorrect calculation and an excessive bill was left to verification by the Executive Engineer under Clause 6.5 after pre-deposit. ¶ 1

clause-6.5b-quantification-dispute Maintenance of the Clause 6.5 application was conditioned on communication and deposit of the pre-deposit required by Clause 6.5(b)(ii). ¶ 1

clause-6.5-objection-must-be-in-proper-form The consumer was directed to file a proper application disputing the bill before the Executive Engineer, not to obtain writ correction of the demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL WAS INCORRECTLY CALCULATED OR EXCESSIVE

Left to the Executive Engineer to verify under Clause 6.5 after the prescribed pre-deposit. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.